

24SMCV05784 24SMCV05784

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-06-30

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C06%2F30%2F2026

Source SHA-256: 310789f850ccdc727af4a17326c76ba41c92d5b15a1adb3fa47e1515bb3faec1

Case Number: 24SMCV05784 Hearing Date: June 30, 2026 Dept: M

CASE NAME: Kamel, et al., v. Guirguis, et al.

CASE NO.: 24SMCV05784

MOTION: Demurrer to the Second Amended Complaint

HEARING DATE: 6/30/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant Evelen Guirguis demurs to each cause of action of Plaintiffs Usama Kamel, Jehan Bekhet, Maria Abdelmesseh, and Amy Abdelmesseh's Second Amended Complaint (“SAC”), and moves to strike allegations regarding punitive damages, agency, and emotional distress.

Defendant Mena Guirguis demurs to each cause of action the SAC, and moves to strike allegations regarding punitive damages, agency, and emotional distress.

Defendants Xavier Jones and 12422 Pacific LLC demurs to each

cause of action of the SAC.

Pertinent

Allegations

Plaintiffs are tenants of the subject Property, 12422 Pacific Ave., #1, Los Angeles, 90066. (SAC ¶ 1.) Evelen and Mena Guirguis are the former owners and/or managers of the Subject Property. (SAC ¶ 2.) 12422 Pacific LLC is the current owner of the Property. (Id.) Jones is the managing agent and sole owner of the LLC. (Id.)

According to the SAC, the Property suffered from defects that rendered it untenantable, including defective plumbing, defective faucet, and a corroded sink stopper. (SAC ¶ 7.) For example, in 2022, the ceiling in the bathroom collapsed. (SAC ¶ 18.) Despite notice to Guirguis Defendants, Plaintiffs remained without access to any bathroom for weeks. (Id.) When Guirguis Defendants finally effectuated repairs, the repairs were improper and inadequate. (Id.) Plaintiffs' sole bathroom continues to suffer from bubbling in the walls, trapped moisture which causes mold, dilapidated and broken bathroom fixtures, and faulty plumbing which causes consistent, unnoticed water shutoffs. (Id.) Plaintiffs also allege that the heating and cooling appliance were not maintained, and are not sure whether they are even operable. (SAC ¶ 19.) Defendants had written, verbal and constructive notice of these issues. (SAC ¶20.) This includes notice via an inspection of the Property prior to the sale of the building to the LLC. (Id.) Defendants refuse to repair, and instead mounted a campaign of intimidation and harassment to inconvenience Plaintiffs and ultimately force Plaintiffs to abandon their home. (SAC ¶¶ 21.) Defendants knowingly intended to interfere with Plaintiffs' use and enjoyment of the Property. (SAC ¶ 22.)

Defendants have engaged in a "harassment campaign" against Plaintiffs, including failing to repair the rental unit after being provided with written notice. (SAC ¶¶ 9, 15, 21.) Guirguis Defendants attempted to physically strike Usama. (SAC ¶ 11.) Guirguis Defendants arbitrarily forbade outdoor grilling in a spacious yard and threatened to remove and confiscate any offending personal property belonging to Plaintiffs. (SAC ¶ 12.) Guirguis Defendants removed the side fences from the Property, thus permitting unfettered, unobstructed public access to Plaintiffs' private yard, causing a substantial safety concern and causing the loss of Plaintiffs' pet dog. (SAC ¶ 13.) Jones appeared at the Property without notice to attempt to remove an

awning structure comprising an essential part of Plaintiff's leased unit. (SAC ¶ 14.) He became aggressive and hostile in the act, threatening to use their tools as weapons once Plaintiffs intervened. (Id.) Defendants have repeatedly intimidated, frightened assaulted or threatened to assault, and attempted to coerce Plaintiffs into leaving the Property. (SAC ¶ 23.)

Defendants over-collected rent. (SAC ¶ 8.) Jones and the LLC knowingly demanded more rent than what was legally owed. (SAC ¶ 16.) Jones and the LLC also refused to accept Plaintiffs' rent and demanded Plaintiffs take a buyout of their unit. (SAC ¶ 17.)

First

and Second Causes – Habitability

The elements of negligence are: 1) a legal duty owed to plaintiffs to use due care; 2) breach of duty; 3) causation; and 4) damage to plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) A landlord has a duty to ensure that a leased premises is maintained in a habitable condition- that is, the landlord will maintain "bare living requirements." (Green v. Superior Court (1974) 10 Cal.3d 616, 637.)

To establish a breach

of the implied warranty of habitability, a plaintiff must allege (1) "the existence of a material defective condition affecting the premises' habitability," (2) "notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition," (3) "the landlord was given a reasonable time to correct the deficiency, and" (4) "resulting damages." (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297.) "The implied warranty of habitability recognizes 'the realities of the modern urban landlord-tenant relationship' and imposes upon the landlord the obligation to maintain leased dwellings in a habitable condition throughout the term of the lease." (Peterson v. Superior Court (1995) 10 Cal.4th 1185, 1204.) "The implied warranty of habitability... gives a tenant a reasonable expectation that the landlord has inspected the rental dwelling and corrected any defects disclosed by that inspection that would render the dwelling uninhabitable. The tenant further reasonably can expect that the landlord will maintain the property in a habitable condition by repairing promptly any conditions, of which the landlord has actual or constructive notice, that arise during the tenancy and render the

dwelling uninhabitable. A tenant injured by a defect in the premises, therefore, may bring a negligence action if the landlord breached its duty to exercise reasonable care." (Id. at 1205-1206, fns. omitted.)

The SAC states causes of action against Defendants for breach of the warranty of habitability and for negligence based on the breach of that same duty. Defendants allegedly breached their duties as landlords to provide Plaintiffs with a safe, habitable, and tenantable dwelling by failing to maintain the Property in a habitable condition. (SAC ¶¶ 27-28, 33-35.) The SAC alleges persisting habitability issues, including with mold, plumbing, and consistent, unnoticed water shutoffs. (SAC ¶ 18.) Despite notice, Defendants have refused to repair those defects, instead mounting a campaign of intimidation and harassment to inconvenience Plaintiffs and force them to abandon the Property. (SAC ¶¶ 18-21.) As a result of the habitability issues, Plaintiffs suffered damages, including economic and non-economic damages. (SAC ¶¶ 29, 36.)

Jones separately argues that he has no duty to Plaintiffs, since he is not alleged to be the direct landlord of the Property. The specific facts alleged establish he is the managing agent and sole owner of the LLC, and that the LLC owns the Property. (SAC ¶ 2.) He notes that he would not be liable unless he authorizes, directs, or in some meaningful sense actively participates in wrongful conduct. (See *Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503 [corporate directors generally cannot be held vicariously liable for the corporation's torts; the individual officer or director will be immune unless he authorizes, directs, or in some meaningful sense actively participates in the wrongful conduct].) The SAC alleges Jones's direct participation in the allegedly wrongful conduct. Jones allegedly had written, verbal and constructive notice of the habitability issues, yet failed to correct those issues. (SAC ¶ 20.) The habitability issues persist through the change of ownership. (SAC ¶18.) Additionally, as to the rent collection and harassment allegations, LARSO has an expansive definition of landlord as including any person "having any legal or equitable right of ownership or possession or the right to lease or receive rent," or the "representative" of an owner or lessor. (LAMC §§ 45.32, 151.02.) Jones meets these definitions by having an equitable right of ownership via his sole ownership of the LLC as well as being a representative of the LLC.

Accordingly, the demurrers are OVERRULED as to the first and second causes of action.

Third
and Fourth Causes – LARSO Harassment

LAMC section 45.33

defines tenant harassment as “a landlord’s bad faith conduct directed at a specific tenant or tenants that causes the latter detriment or harm.” The definition expressly includes reducing or eliminating, or threatening to reduce or to eliminate, housing services required by a lease, contract or law. (LAMC § 45.33(1).) The definition includes the failure “to perform timely and complete necessary repairs and maintenance required by Federal, State, County, or local housing, health, or safety laws.” (LAMC § 45.33(2).) The definition also includes “[t]hreatening a tenant, or their guests, by word or gesture, with physical harm.” (LAMC § 45.33(6).) It also includes “[r]efusing to acknowledge, facilitate, or accept receipt of lawful rent payments or rental assistance payments as set forth in the lease agreement or as established by the usual practice of the parties or applicable law.” (LAMC § 45.33(9).) It also broadly covers “[o]ther repeated acts... of such significance as to substantially interfere with or disturb the comfort, repose, peace or quiet of a tenant(s) and that cause, are likely to cause, or are committed with the objective to cause a tenant(s) to surrender or waive any rights in relation to such tenancy.” (LAMC § 45.33(17).)

The SAC alleges

Defendants engaged in tenant harassment. (SAC ¶ 40.) As discussed, Defendants willfully failed to perform and timely complete necessary repairs and maintenance with the intent to have Plaintiffs abandon the Property. (SAC ¶¶ 18-22.) Defendants have repeatedly intimidated, frightened, assaulted or threatened to assault, and attempted to coerce Plaintiffs into leaving the Property. (SAC ¶ 23.) Guirguis Defendants attempted to physically strike Usama. (SAC ¶ 11.) Jones attempted to remove a material awning structure from the Property, and became aggressive and threatened to use tools as weapons once Plaintiffs intervened. (SAC ¶ 14.) Defendants reduced or threatened to reduce housing services material to the lease. Guirguis Defendants forbade outdoor grilling and threatened to remove and confiscate personal property belonging to Plaintiffs. (SAC ¶ 12.) Guirguis Defendants removed the side fences from the Property causing a substantial safety concern. (SAC ¶ 13.) Jones and the

LLC refused to accept Plaintiffs' lawful rent and pressured Plaintiffs to leave. (SAC ¶ 17.)

Accordingly, the demurrer is OVERRULED as to the third and fourth causes of action.

Fifth Cause – Overpayment of Rent

LAMC § 151.04 states that “[i]t shall be unlawful for any landlord to demand, accept or retain more than the maximum adjusted rent permitted pursuant to this chapter or regulation or orders adopted pursuant to this chapter.” LAMC § 151.07(A) provides the formulae for calculation of the maximum adjusted rent. Notably, a successor landlord may be held liable for maintaining a prior landlord's unlawful rent increases. (*Baychester Shopping Center, Inc. v. San Francisco Residential Rent Stabilization and Arbitration Bd. of City and County of San Francisco* (2008) 165 Cal.App.4th 1000, 1008-09.) The SAC alleges that Defendants charged rent in violation of LARSO. (SAC ¶¶ 8, 16, 47.) The SAC further alleges that Jones himself demanded excess rent. (*Id.*)

Accordingly, the demurrers are OVERRULED as to the fifth cause of action with leave to amend.

Sixth Cause – Quiet Enjoyment

Every lease includes a covenant of quiet possession and enjoyment. (*Erlach, supra*, 226 Cal.App.4th at 1299.) The necessary elements for breach of the covenant of quiet enjoyment are: (1) a lease agreement between plaintiff and defendant; (2) the absence of language contrary to the implied covenant that tenant shall have quiet enjoyment and possession; (3) an act or omission of the landlord, or anyone claiming under the landlord, which substantially interferes with a tenant's right to use and enjoy the premises for purposes contemplated; and (4) an applicable remedy. (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588-591.) A plaintiff may alternatively terminate the lease, surrender the property and sue for damages, or elect to stand upon the lease and sue for damages as well as for injunctive relief. (*Id.* at 590.)

The allegations of harassment and intentional failure to maintain habitability

establish that Defendants substantially interfered with Plaintiffs' use and enjoyment of the Premises.

To reiterate, despite actual notice of the habitability issues, Defendants refused to repair the defects in order force Plaintiffs to abandon their home. (SAC ¶¶ 20-22.) Defendants attempted to assault at least one plaintiff. (SAC ¶ 11.) Defendants reduced or threatened to reduce housing services material to the lease. (SAC ¶¶ 11-14, 23.) Such acts may be considered a substantial interference with Plaintiffs' lease.

Accordingly,
the demurrers are OVERRULED as to the sixth cause of action.

Motion to Strike – Emotional Distress

Plaintiffs

may recover emotional distress damages in tort based on the above discussed allegations. The negligent infliction of emotional distress, including anxiety, worry and discomfort, is compensable without physical injury in cases involving the tortious interference with property rights. (Erlach, supra, 226 Cal.App.4th at 1299.) This includes circumstances where the failure to repair a premises renders the premises uninhabitable. (Id.) Therefore, the motion to strike is DENIED.

MTS – Agency

General allegations of agency are sufficient for pleading purposes. (Brown v. USA Taekwondo (2019) 40 Cal.App.5th 1077, 1106.) The ultimate facts of agency are pled. (SAC ¶¶ 2, 4, 11.) Accordingly, the motion to strike is DENIED.

MTS – Punitive Damages

Section 3294 defines

malice as conduct “intended by the defendant to cause injury to the plaintiff,” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Despicable is a powerful term used to describe circumstances that are “base,” “vile,” or “contemptible.” (Coll. Hosp., supra, 9 Cal.4th 704, 726.) The statute “plainly indicates that absent an intent to injure the plaintiff, “malice” requires more than a “willful and conscious” disregard of the plaintiffs' interests. The additional component of “despicable conduct” must be found.” (Id.)

Courts have permitted recovery of punitive damages on claims for tortious breach of the implied covenant of quiet enjoyment. (Ginsberg v. Gamson (2012) 205 Cal.App.4th 873; Hjelm v. Prometheus Real Estate Group Inc. (2016) 3 Cal.App.5th 1155; Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 919.) For example, in Stoiber, the court found that a plaintiff could recover punitive damages for numerous persistent uninhabitable conditions of which she repeatedly notified the landlord defendants. (Id. at 921.) The plaintiff alleged specific uninhabitable conditions, including heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, overfused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard. (Ibid.) Despite notice, the defendants knowingly, intentionally and willfully failed to correct the defective conditions by not even attempting to repair the defects, except on one occasion where they sent a plumber in response to a complaint regarding the toilet. (Id. at 913.)

The SAC alleges that the Guirguis Defendants engaged in knowing, intentional and willful conduct designed to harm Plaintiffs. Despite actual notice of the habitability issues, including consistent and unnoticed water shutoffs, Guirguis Defendants refused to repair the defects in order force Plaintiffs to abandon their home. (SAC ¶¶ 11-22.) The allegations establish an intent to injure Plaintiffs by forcing them to move. Moreover, there would be a dispute of fact as to whether the alleged conduct was despicable. Thus, the claim for punitive damages are well-pled against Mena and Evelen.

Accordingly,
the motion to strike is DENIED.

Defendants
to file an answer within 20 days.